

# AUSTIN POLICE DEPARTMENT

## Warning and Waiver of Rights Form

|                                                           |                                                   |                                          |                                         |
|-----------------------------------------------------------|---------------------------------------------------|------------------------------------------|-----------------------------------------|
| <b>Form No.</b><br>MW-26-214-044                          | <b>Date / Time</b><br>01/14/2026 11:06 PM         | <b>Case / Report No.</b><br>26-0115-2147 | <b>Location</b><br>APD Interview Room B |
| <b>Interviewing Officer</b><br>Det. Luis Morales<br>#6118 | <b>Witness Officer</b><br>Officer T. Benton #5624 | <b>Subject</b><br>Marcus Reed            | <b>Status</b><br>In custody             |

### SUBJECT INFORMATION

|                            |                                    |                                           |                                    |
|----------------------------|------------------------------------|-------------------------------------------|------------------------------------|
| <b>Name</b><br>Marcus Reed | <b>Date of Birth</b><br>08/22/1991 | <b>State ID</b><br>Texas DL ending in 482 | <b>Booking No.</b><br>TC-26-114782 |
|----------------------------|------------------------------------|-------------------------------------------|------------------------------------|

### MIRANDA WARNINGS

| Initial | Right Read to Subject                                                                               |
|---------|-----------------------------------------------------------------------------------------------------|
| MR      | You have the right to remain silent.                                                                |
| MR      | Anything you say can and will be used against you in court.                                         |
| MR      | You have the right to talk to a lawyer and to have a lawyer present with you during questioning.    |
| MR      | If you cannot afford a lawyer, one will be appointed for you before any questioning if you wish.    |
| MR      | If you decide to answer questions now without a lawyer present, you may stop answering at any time. |

### SUBJECT ACKNOWLEDGMENT

I have read or had read to me the above rights. I state that I understand these rights as explained to me. No promises or threats have been made to me to obtain this acknowledgment.

### WAIVER

Having these rights in mind, I am willing to speak with law enforcement officers at this time without a lawyer present. I make this statement knowingly, intelligently, and voluntarily.

### SIGNATURES

|                                                           |                                           |
|-----------------------------------------------------------|-------------------------------------------|
| <b>Subject Signature</b><br>/s/ Marcus Reed               | <b>Date / Time</b><br>01/14/2026 11:06 PM |
| <b>Interviewing Officer Signature</b><br>/s/ Luis Morales | <b>Date / Time</b><br>01/14/2026 11:07 PM |
| <b>Witness Signature</b><br>/s/ Tessa Benton              | <b>Date / Time</b><br>01/14/2026 11:07 PM |

**Administrative Note:** This form reflects the time the written warning and waiver were completed and signed. Any audio or video recording of the interview is maintained separately under the associated case file.